



Cadillac Utilities Department

Date: 7/31/2013

Mike Bitondo,
Lakes Michigan and Superior Permits Unit
Water Resources Division-DEQ, PO Box 30458
Lansing, MI 48909-7958

Re: City of Cadillac Draft NPDES Permit

Mr. Bitondo,

The City of Cadillac (City) is currently reviewing the draft NPDES that you provided Hamid Rahbarnoohi. After a cursory review there are several concerns that we have with the proposed permit. The concerns are as follows:

1. **Available Cyanide** – Currently we have been monitoring available cyanide quarterly. All of the sample results have been below detection except for three, which were 5 ug/l, 4 ug/l and 17 ug/l. All of the samples would have been within the proposed permit parameter except for the 17 ug/l. Currently we spend \$300.00 dollars a year to monitor Cyanide on a quarterly basis; the proposed weekly testing schedule in the draft permit, however, would cost the City \$2600 a year. This seems unnecessary. Even though the draft permit suggests that a reduction in frequency could be requested and potentially granted after 12 months to reduce the monitoring from weekly to monthly, the City would still incur greater testing costs than the past results justify.
2. **Copper** – Currently, the City does not monitor copper under Part I Section A. 1 of the current permit, although additional testing is conducted under Part I Section A. 2 of that permit. These past additional monitoring tests averaged 8 ug/l with the highest result being 15 ug/l. All of these sample results would be below the new proposed permit. The proposed testing requirement would cost \$1560 a year to monitor, which compares to the \$120 incurred during the current permit to satisfy the additional monitoring requirement. In the City's view, this issue already was historically resolved. While the 2003 NPDES permit had copper monitoring, copper testing was removed except for the additional monitoring requirement in the 2008 NPDES permit. Why is weekly copper testing being proposed as a permit requirement with maximum limit requirements? Even if additional testing is desirable in the short term, we would note that the City has the ability to reach a detection limit of 50 ug/l on copper using its Atomic Absorption machine (flame method). Currently we spend 0.00 dollars a year to monitor Copper down to 50 ug/l since we own the equipment.
3. **Total Mercury** – We are concerned about the lowering of the mercury limit. The proposed limit, had it been applied in the last permit would have caused the City of Cadillac to violate its NPDES 3 times in the last five years. That is 10% of the time out of 29 sampling events. If the level is lowered to 5 ng/l rather than the 2 ng/l suggested, then the City of Cadillac would have no violations based on past results.



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The changes in the ammonia nitrogen, acute toxicity and chronic toxicity are all acceptable. I assume that selenium has been removed from our new permit even though it is not noted that it is being removed. May we meet with you in person or by phone to discuss?

Please call me if any further information needs to be acquired for this project.

A handwritten signature in black ink, appearing to read "Jeff M. Dietlin", followed by a long, horizontal, sweeping line that extends to the right.

Jeffrey M. Dietlin
City of Cadillac
Director of Utilities
(231) 779-7346(Direct)
(231)775-0906 (Fax)

cc: Charles E. Barbieri, Foster Swift Collins & Smith, PC

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